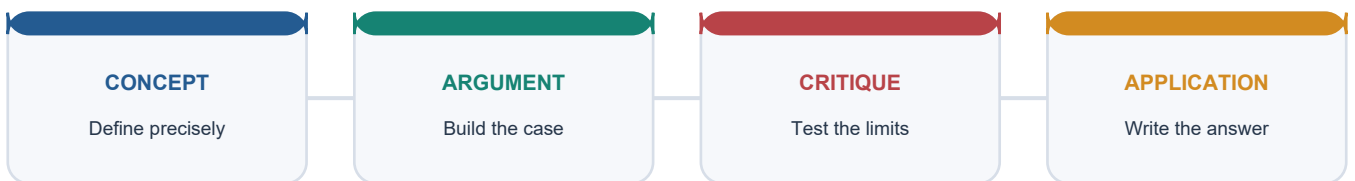


SOLVED PRACTICE WORKBOOK

Lok Adalats and Other Courts - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Lok Adalats and Other Courts - Solved Practice Workbook	4
--	----------

PRACTICE WORKBOOK OVERVIEW	4
-----------------------------------	----------

BASIC MCQS / REMEDIATION	4
---------------------------------	----------

MCQ 1	4
MCQ 2	4
MCQ 3	5
MCQ 4	5
MCQ 5	6
MCQ 6	6
MCQ 7	6
MCQ 8	7
MCQ 9	7
MCQ 10	8
MCQ 11	8
MCQ 12	8
MCQ 13	9
MCQ 14	9
MCQ 15	10
MCQ 16	10
MCQ 17	10
MCQ 18	11
MCQ 19	11
MCQ 20	12
MCQ 21	12
MCQ 22	12
MCQ 23	13
MCQ 24	13
MCQ 25	14
MCQ 26	14

MCQ 27	14
MCQ 28	15
MCQ 29	15
MCQ 30	16
MCQ 31	16
MCQ 32	16
PYQS AND ANSWER PRACTICE	17
Verified PYQ 1 - UPSC Prelims 2020, GS Paper I, Question 9	17
Verified PYQ 2 - UPSC Mains 2023, GS Paper II, Question 2	17
Verified PYQ 3 - UPSC Mains 2024, GS Paper II, Question 2	17
SIX ORIGINAL MAINS MODELS	18

Lok Adalats and Other Courts - Solved Practice Workbook

Standalone scope: exactly 32 original MCQs before PYQs, three verified PYQs with answers withheld unless backed by a final official/local key, and exactly six original Mains models.

PRACTICE WORKBOOK OVERVIEW

Attempt each item before reading its explanation. For Mains, state the exact source, distinguish consent from adjudication, attach one named case to each major claim and end with a jurisdictional or implementation qualification.

Practice contract: Exactly 32 original MCQs appear before the PYQs. Correct answers rotate A -> B -> C -> D eight times. Every option has a question-specific explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which proposition best states Article 39A?

- A. It directs equal-opportunity justice and free legal aid against economic or other disability.
- B. It creates a directly elected national legal-aid court.
- C. It guarantees State-funded counsel in every civil dispute without conditions.
- D. It places Lok Adalats in the constitutional court hierarchy.

Answer: A.

Option-specific explanations:

- **A - Correct:** This states the text's equal-justice and free-legal-aid direction. [MCQ 1, option A: It directs equal-opportunity justice and free legal aid against economic or other disability.]
- **B - Incorrect:** Article 39A creates no elected court. [MCQ 1, option B: It creates a directly elected national legal-aid court.]
- **C - Incorrect:** The Article does not specify unconditional counsel in every civil matter. [MCQ 1, option C: It guarantees State-funded counsel in every civil dispute without conditions.]
- **D - Incorrect:** Lok Adalats are statutory, not constitutional courts. [MCQ 1, option D: It places Lok Adalats in the constitutional court hierarchy.]

Examiner trap 1: A Directive Principle can shape enforceable law without itself creating every institution.

MCQ 2

What did Khatri (II) establish about criminal legal aid?

- A. It begins only when evidence recording starts.
- B. It attaches from first production and remand, with a judicial duty to inform.
- C. It depends entirely on a written application by the accused.
- D. It may be denied whenever the State cites budget constraints.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The judgment rejected a trial-only starting point. [MCQ 2, option A: It begins only when evidence recording starts.]
- **B - Correct:** The Court imposed the early-stage duty and information obligation. [MCQ 2, option B: It attaches from first production and remand, with a judicial duty to inform.]
- **C - Incorrect:** An uninformed indigent accused cannot be expected to demand the right. [MCQ 2, option C: It depends entirely on a written application by the accused.]

- **D - Incorrect:** Financial or administrative inability is not an answer. [MCQ 2, option D: It may be denied whenever the State cites budget constraints.]

Examiner trap 2: Do not postpone legal aid until trial; liberty is at risk at first production.

MCQ 3

Which statement correctly combines Sections 12 and 13?

- A. Every Indian below one national income figure is automatically represented.
- B. Only criminal accused persons are eligible.
- C. A Section 12 category plus a prima facie case supports entitlement.
- D. The authority must decide the entire case before granting aid.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Income thresholds are prescribed and several gateways are status-based. [MCQ 3, option A: Every Indian below one national income figure is automatically represented.]
- **B - Incorrect:** Legal services extend beyond criminal defence. [MCQ 3, option B: Only criminal accused persons are eligible.]
- **C - Correct:** This correctly joins eligibility with the prima facie screen. [MCQ 3, option C: A Section 12 category plus a prima facie case supports entitlement.]
- **D - Incorrect:** Section 13 requires a preliminary assessment, not a trial. [MCQ 3, option D: The authority must decide the entire case before granting aid.]

Examiner trap 3: Eligibility and entitlement are linked but distinct statutory steps.

MCQ 4

Which body administers legal services for matters before the High Court?

- A. NALSA alone.
- B. The DLSA.
- C. The Taluk Committee.
- D. The High Court Legal Services Committee.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** NALSA lays national policy but is not the court-specific committee. [MCQ 4, option A: NALSA alone.]
- **B - Incorrect:** DLSA operates at district level. [MCQ 4, option B: The DLSA.]
- **C - Incorrect:** The Taluk Committee coordinates local delivery. [MCQ 4, option C: The Taluk Committee.]
- **D - Correct:** Section 8A creates the court-specific committee. [MCQ 4, option D: The High Court Legal Services Committee.]

Examiner trap 4: Match each committee to the court before which the matter is pending.

MCQ 5

An ordinary Lok Adalat may take cognizance of

- A. a pending civil case or eligible pre-litigation matter within court jurisdiction.
- B. every non-compoundable criminal prosecution.
- C. only disputes already decided by a High Court.
- D. any matter regardless of territorial or subject jurisdiction.

Answer: A.

Option-specific explanations:

- **A - Correct:** Sections 19-20 permit both listed stages within jurisdiction. [MCQ 5, option A: a pending civil case or eligible pre-litigation matter within court jurisdiction.]
- **B - Incorrect:** Non-compoundable offences are expressly excluded. [MCQ 5, option B: every non-compoundable criminal prosecution.]
- **C - Incorrect:** The forum is not confined to finally decided cases. [MCQ 5, option C: only disputes already decided by a High Court.]
- **D - Incorrect:** Informality does not eliminate jurisdiction. [MCQ 5, option D: any matter regardless of territorial or subject jurisdiction.]

Examiner trap 5: Pre-litigation breadth remains bounded by the organising court's jurisdiction.

MCQ 6

If compromise fails in an ordinary Lok Adalat, it must

- A. issue the result it considers equitable.
- B. return the pending matter or advise the pre-litigation parties to use the ordinary remedy.
- C. convert itself into a Permanent Lok Adalat.
- D. send every matter directly to the Supreme Court.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Justice and equity guide conciliation, not unilateral merits decision. [MCQ 6, option A: issue the result it considers equitable.]
- **B - Correct:** Section 20 specifies the failure route. [MCQ 6, option B: return the pending matter or advise the pre-litigation parties to use the ordinary remedy.]
- **C - Incorrect:** The two institutions have separate statutory foundations. [MCQ 6, option C: convert itself into a Permanent Lok Adalat.]
- **D - Incorrect:** No such automatic constitutional transfer exists. [MCQ 6, option D: send every matter directly to the Supreme Court.]

Examiner trap 6: A failed settlement produces a route back, not a Lok Adalat judgment.

MCQ 7

Under Section 21, a valid ordinary Lok Adalat award is

- A. merely a non-binding recommendation.
- B. appealable as of right to the District Court.
- C. deemed a civil-court decree and final and binding without statutory appeal.
- D. valid even without any settlement.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The statute gives the award binding decree status. [MCQ 7, option A: merely a non-binding recommendation.]
- **B - Incorrect:** Section 21 bars an ordinary statutory appeal. [MCQ 7, option B: appealable as of right to the District Court.]
- **C - Correct:** This states the award's legal effect. [MCQ 7, option C: deemed a civil-court decree and final and binding without statutory appeal.]
- **D - Incorrect:** *Jalour Singh* makes agreement foundational. [MCQ 7, option D: valid even without any settlement.]

Examiner trap 7: Decree status follows a valid compromise; it does not create merits power.

MCQ 8

Which is the narrow lawful route against a defective Lok Adalat award?

- A. A routine first appeal on facts.
- B. A fresh original suit in every case.
- C. Automatic revision by NALSA.
- D. Constitutional review on limited foundational grounds.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The statute excludes a regular appeal. [MCQ 8, option A: A routine first appeal on facts.]
- **B - Incorrect:** Finality cannot be bypassed by an ordinary suit as a general rule. [MCQ 8, option B: A fresh original suit in every case.]
- **C - Incorrect:** NALSA is not a revisional court. [MCQ 8, option C: Automatic revision by NALSA.]
- **D - Correct:** Fraud, absent consent or jurisdictional illegality may support narrow writ review. [MCQ 8, option D: Constitutional review on limited foundational grounds.]

Examiner trap 8: No statutory appeal is not the same as no constitutional remedy whatsoever.

MCQ 9

What is the legal character of a National Lok Adalat?

- A. A coordinated exercise of ordinary statutory Lok Adalat benches.
- B. A new court above all High Courts.
- C. A Permanent Lok Adalat for every sector.
- D. A tribunal under Part XIV-A.

Answer: A.

Option-specific explanations:

- **A - Correct:** National describes coordination and scale under the same statute. [MCQ 9, option A: A coordinated exercise of ordinary statutory Lok Adalat benches.]
- **B - Incorrect:** No constitutional appellate tier is created. [MCQ 9, option B: A new court above all High Courts.]
- **C - Incorrect:** PLA jurisdiction remains separately limited to public utility disputes. [MCQ 9, option C: A Permanent Lok Adalat for every sector.]
- **D - Incorrect:** Part XIV-A tribunals are a different topic. [MCQ 9, option D: A tribunal under Part XIV-A.]

Examiner trap 9: Administrative scale never enlarges Sections 19-21 powers.

MCQ 10

Which dispute fits the PLA gateway?

- A. A civil appeal already pending in court.
- B. A pre-litigation dispute concerning a defined public utility service within statutory limits.
- C. A prosecution for a non-compoundable offence.
- D. Any employment dispute merely because one party is a public corporation.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** PLA is pre-litigation. [MCQ 10, option A: A civil appeal already pending in court.]
- **B - Correct:** This satisfies stage and subject filters. [MCQ 10, option B: A pre-litigation dispute concerning a defined public utility service within statutory limits.]
- **C - Incorrect:** The statute excludes non-compoundable offences. [MCQ 10, option C: A prosecution for a non-compoundable offence.]
- **D - Incorrect:** Public ownership does not itself create public-utility jurisdiction. [MCQ 10, option D: Any employment dispute merely because one party is a public corporation.]

Examiner trap 10: Test service, stage, offence and the notified pecuniary framework separately.

MCQ 11

After PLA conciliation fails, Section 22C(8) permits merits decision when

- A. the chairperson dislikes a party's offer.
- B. the dispute is already before another court.
- C. the eligible dispute does not relate to an offence.
- D. the matter is a non-compoundable prosecution.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Subjective dissatisfaction is not the statutory test. [MCQ 11, option A: the chairperson dislikes a party's offer.]
- **B - Incorrect:** The application must precede court proceedings. [MCQ 11, option B: the dispute is already before another court.]
- **C - Correct:** This is the express post-conciliation condition. [MCQ 11, option C: the eligible dispute does not relate to an offence.]
- **D - Incorrect:** Non-compoundable offences are excluded at the jurisdictional gate. [MCQ 11, option D: the matter is a non-compoundable prosecution.]

Examiner trap 11: Do not convert 'compoundable offence may enter conciliation' into 'offence may be adjudicated on merits'.

MCQ 12

Section 22D means that the PLA

- A. may ignore natural justice.
- B. must follow every CPC formality.
- C. must apply the Evidence Act mechanically.
- D. is guided by natural justice and equity though not bound by CPC or Evidence Act.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Natural justice is expressly central. [MCQ 12, option A: may ignore natural justice.]
- **B - Incorrect:** The statute releases the PLA from strict CPC binding. [MCQ 12, option B: must follow every CPC formality.]
- **C - Incorrect:** The Evidence Act is likewise not binding. [MCQ 12, option C: must apply the Evidence Act mechanically.]
- **D - Correct:** This states both flexibility and fairness. [MCQ 12, option D: is guided by natural justice and equity though not bound by CPC or Evidence Act.]

Examiner trap 12: Procedural flexibility is not procedural lawlessness.

MCQ 13

Which statement about a PLA pecuniary ceiling is safest?

- A. Use the amount fixed by the currently applicable notification and date the source.
- B. The 1987 Act permanently freezes one rupee figure.
- C. Every State may disregard the Central notification.
- D. Pecuniary jurisdiction is irrelevant to PLA competence.

Answer: A.

Option-specific explanations:

- **A - Correct:** The Act uses a notification-sensitive framework. [MCQ 13, option A: Use the amount fixed by the currently applicable notification and date the source.]
- **B - Incorrect:** A static figure may become stale. [MCQ 13, option B: The 1987 Act permanently freezes one rupee figure.]
- **C - Incorrect:** The statutory allocation cannot be ignored. [MCQ 13, option C: Every State may disregard the Central notification.]
- **D - Incorrect:** Value is an express jurisdictional filter. [MCQ 13, option D: Pecuniary jurisdiction is irrelevant to PLA competence.]

Examiner trap 13: Never reproduce an undated ceiling as permanently fixed statutory text.

MCQ 14

Which sequence is mandatory before PLA merits adjudication?

- A. Direct judgment followed by optional mediation.
- B. Conciliation, possible settlement terms where appropriate, then eligible adjudication after failure.
- C. Arbitration agreement followed by an arbitral award.
- D. Reference from a pending civil court after trial.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The statutory sequence does not begin with judgment. [MCQ 14, option A: Direct judgment followed by optional mediation.]
- **B - Correct:** *Canara Bank* reinforces this conciliation-first route. [MCQ 14, option B: Conciliation, possible settlement terms where appropriate, then eligible adjudication after failure.]
- **C - Incorrect:** PLA jurisdiction does not depend on an arbitration agreement. [MCQ 14, option C: Arbitration agreement followed by an arbitral award.]
- **D - Incorrect:** The route is pre-litigation. [MCQ 14, option D: Reference from a pending civil court after trial.]

Examiner trap 14: A PLA cannot treat conciliation as a decorative formality.

MCQ 15

What is common to ordinary and Permanent Lok Adalat awards?

- A. Both always require consent.
- B. Both arise only in pending cases.
- C. Both receive deemed-decree status and statutory finality.
- D. Both decide criminal offences on merits.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** PLA may adjudicate an eligible non-offence dispute after failed conciliation. [MCQ 15, option A: Both always require consent.]
- **B - Incorrect:** PLA is pre-litigation, while ordinary sittings may receive pending cases. [MCQ 15, option B: Both arise only in pending cases.]
- **C - Correct:** This is the principal shared legal effect. [MCQ 15, option C: Both receive deemed-decree status and statutory finality.]
- **D - Incorrect:** Neither proposition about criminal merits is correct. [MCQ 15, option D: Both decide criminal offences on merits.]

Examiner trap 15: Shared finality must not conceal different sources of decisional power.

MCQ 16

Which proposition follows from *Jalour Singh*?

- A. Ordinary Lok Adalats may impose equitable compensation.
- B. Counsel consent is never relevant.
- C. Every award is immune from writ jurisdiction.
- D. Without compromise, an ordinary Lok Adalat has no award and no merits power.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Equity guides settlement rather than adjudication. [MCQ 16, option A: Ordinary Lok Adalats may impose equitable compensation.]
- **B - Incorrect:** The compromise must genuinely bind the parties. [MCQ 16, option B: Counsel consent is never relevant.]
- **C - Incorrect:** The Court recognised limited Articles 226/227 challenge. [MCQ 16, option C: Every award is immune from writ jurisdiction.]
- **D - Correct:** This is the case's central holding. [MCQ 16, option D: Without compromise, an ordinary Lok Adalat has no award and no merits power.]

Examiner trap 16: Do not cite *Jalour Singh* for PLA's distinct Chapter VI-A power.

MCQ 17

The principal function of Section 9 of the Family Courts Act is to

- A. require settlement efforts where consistent with the case.
- B. abolish adjudication of family disputes.
- C. make lawyers compulsory in every proceeding.
- D. transfer every family dispute to Lok Adalat.

Answer: A.

Option-specific explanations:

- **A - Correct:** The section makes conciliation an institutional duty. [MCQ 17, option A: require settlement efforts where consistent with the case.]
- **B - Incorrect:** Unresolved disputes remain judicially decidable. [MCQ 17, option B: abolish adjudication of family disputes.]
- **C - Incorrect:** Section 13 says representation is not a right as of course. [MCQ 17, option C: make lawyers compulsory in every proceeding.]
- **D - Incorrect:** Family Court jurisdiction remains distinct. [MCQ 17, option D: transfer every family dispute to Lok Adalat.]

Examiner trap 17: Conciliation orientation does not make the Family Court a compromise-only body.

MCQ 18

Which is within Section 7 Family Court jurisdiction?

- A. A constitutional challenge to a Union tax.
- B. Custody, maintenance and specified matrimonial or inter-spousal disputes.
- C. Every corporate insolvency proceeding.
- D. A criminal appeal from a Sessions Court.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Tax constitutional review lies elsewhere. [MCQ 18, option A: A constitutional challenge to a Union tax.]
- **B - Correct:** These are central statutory categories. [MCQ 18, option B: Custody, maintenance and specified matrimonial or inter-spousal disputes.]
- **C - Incorrect:** Insolvency is outside the listed family jurisdiction. [MCQ 18, option C: Every corporate insolvency proceeding.]
- **D - Incorrect:** The Family Court is not an appellate criminal court. [MCQ 18, option D: A criminal appeal from a Sessions Court.]

Examiner trap 18: Use the statutory relationship-based categories rather than the vague phrase 'all family problems'.

MCQ 19

Which statement about Family Court procedure is correct?

- A. All hearings must always be public.
- B. A party has an absolute right to any lawyer chosen.
- C. In-camera hearing is mandatory if either party desires it.
- D. The court need not state reasons.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Section 11 permits privacy. [MCQ 19, option A: All hearings must always be public.]
- **B - Incorrect:** Section 13 denies representation as of right. [MCQ 19, option B: A party has an absolute right to any lawyer chosen.]
- **C - Correct:** This is the express privacy safeguard. [MCQ 19, option C: In-camera hearing is mandatory if either party desires it.]
- **D - Incorrect:** Section 17 requires a reasoned judgment. [MCQ 19, option D: The court need not state reasons.]

Examiner trap 19: Flexible evidence and private hearing do not remove the duty to decide fairly and give reasons.

MCQ 20

Under Section 19 of the Family Courts Act, which outcome is excluded from ordinary appeal?

- A. Every final judgment.
- B. Every contested divorce decree.
- C. Every property order.
- D. A decree or order passed with parties' consent.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Qualifying non-interlocutory judgments are ordinarily appealable. [MCQ 20, option A: Every final judgment.]
- **B - Incorrect:** A contested final decree is not categorically excluded. [MCQ 20, option B: Every contested divorce decree.]
- **C - Incorrect:** Property orders depend on the statutory conditions. [MCQ 20, option C: Every property order.]
- **D - Correct:** Consent outcomes fall within the express bar. [MCQ 20, option D: A decree or order passed with parties' consent.]

Examiner trap 20: State the maintenance-category revision route separately from the ordinary appeal.

MCQ 21

Who establishes a Gram Nyayalaya under Section 3?

- A. The State Government after consultation with the High Court.
- B. The village Panchayat without State notification.
- C. NALSA by national order.
- D. Parliament separately for every village.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the statutory establishment route. [MCQ 21, option A: The State Government after consultation with the High Court.]
- **B - Incorrect:** A Panchayat cannot create the court by itself. [MCQ 21, option B: The village Panchayat without State notification.]
- **C - Incorrect:** NALSA administers legal services, not Gram Nyayalaya creation. [MCQ 21, option C: NALSA by national order.]
- **D - Incorrect:** The central Act enables State notification. [MCQ 21, option D: Parliament separately for every village.]

Examiner trap 21: The Act says the State may establish; do not present universal operation as constitutionally compulsory.

MCQ 22

What makes the Gram Nyayalaya a mobile-access institution?

- A. Its judgments circulate between High Courts.
- B. The Nyayadhikari holds mobile courts in villages within jurisdiction.
- C. Every party must file only online.
- D. Its jurisdiction follows any litigant nationwide.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Appellate circulation is not mobility. [MCQ 22, option A: Its judgments circulate between High Courts.]
- **B - Correct:** Section 9 provides local mobile sittings. [MCQ 22, option B: The Nyayadhikari holds mobile courts in villages within jurisdiction.]
- **C - Incorrect:** The Act does not impose online-only access. [MCQ 22, option C: Every party must file only online.]
- **D - Incorrect:** Territorial jurisdiction remains statutory. [MCQ 22, option D: Its jurisdiction follows any litigant nationwide.]

Examiner trap 22: Mobile sitting reduces distance; it does not erase territorial limits.

MCQ 23

Gram Nyayalaya civil and criminal jurisdiction comes primarily from

- A. customary village opinion.
- B. any dispute chosen by the Nyayadhikari.
- C. the Act's Schedules and authorised notifications.
- D. a National Lok Adalat calendar.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Custom cannot create statutory jurisdiction. [MCQ 23, option A: customary village opinion.]
- **B - Incorrect:** Judicial preference cannot replace legal competence. [MCQ 23, option B: any dispute chosen by the Nyayadhikari.]
- **C - Correct:** This is the correct source. [MCQ 23, option C: the Act's Schedules and authorised notifications.]
- **D - Incorrect:** Lok Adalat scheduling is irrelevant. [MCQ 23, option D: a National Lok Adalat calendar.]

Examiner trap 23: Schedules may be lawfully altered; avoid treating a textbook list as permanently exhaustive.

MCQ 24

Which appellate pairing is correct for Gram Nyayalayas?

- A. Civil to Supreme Court; criminal to High Court.
- B. Both directly to High Court.
- C. Both to DLSA.
- D. Criminal to Court of Session and civil to District Court, subject to exclusions.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The Act creates closer appellate routes. [MCQ 24, option A: Civil to Supreme Court; criminal to High Court.]
- **B - Incorrect:** There is no universal direct High Court appeal. [MCQ 24, option B: Both directly to High Court.]
- **C - Incorrect:** DLSA is not an appellate court. [MCQ 24, option C: Both to DLSA.]
- **D - Correct:** Sections 33-34 state this pairing. [MCQ 24, option D: Criminal to Court of Session and civil to District Court, subject to exclusions.]

Examiner trap 24: Appeals are category-limited; do not promise an appeal from every order.

MCQ 25

Fast Track Courts are best described as

- A. additional court capacity under scheme/administrative arrangements.
- B. a permanent constitutional tier created by Article 39A.
- C. the same institution as Permanent Lok Adalat.
- D. tribunals under Article 323A.

Answer: A.

Option-specific explanations:

- **A - Correct:** Their legal character follows the scheme and existing judicial administration. [MCQ 25, option A: additional court capacity under scheme/administrative arrangements.]
- **B - Incorrect:** Article 39A creates no such tier. [MCQ 25, option B: a permanent constitutional tier created by Article 39A.]
- **C - Incorrect:** PLA has defined statutory public-utility jurisdiction. [MCQ 25, option C: the same institution as Permanent Lok Adalat.]
- **D - Incorrect:** Administrative tribunals are separate. [MCQ 25, option D: tribunals under Article 323A.]

Examiner trap 25: The adjective fast describes case-management capacity, not a new species of court.

MCQ 26

A Special Court's jurisdiction is determined by

- A. its popular name alone.
- B. the parent statute and valid designation or notification.
- C. NALSA policy irrespective of legislation.
- D. an ordinary Lok Adalat settlement.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** A title has no independent jurisdictional force. [MCQ 26, option A: its popular name alone.]
- **B - Correct:** This supplies the lawful source and scope. [MCQ 26, option B: the parent statute and valid designation or notification.]
- **C - Incorrect:** NALSA cannot create unrelated criminal or civil jurisdiction. [MCQ 26, option C: NALSA policy irrespective of legislation.]
- **D - Incorrect:** Settlement cannot constitute a Special Court. [MCQ 26, option D: an ordinary Lok Adalat settlement.]

Examiner trap 26: Always name the parent law before describing a Special Court's powers.

MCQ 27

How does mediation differ from an ordinary Lok Adalat?

- A. The mediator may impose a decree after failure.
- B. Mediation necessarily handles criminal prosecution.
- C. Mediation facilitates a party-made settlement under its governing route; ordinary Lok Adalat records compromise as a statutory award.
- D. There is no legal distinction.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** A mediator does not adjudicate merely because talks fail. [MCQ 27, option A: The mediator may impose a decree after failure.]
- **B - Incorrect:** Criminal scope depends on law and cannot be assumed. [MCQ 27, option B: Mediation necessarily handles criminal prosecution.]
- **C - Correct:** This identifies the distinct source and effect. [MCQ 27, option C: Mediation facilitates a party-made settlement under its governing route; ordinary Lok Adalat records compromise as a statutory award.]
- **D - Incorrect:** The regimes are legally different. [MCQ 27, option D: There is no legal distinction.]

Examiner trap 27: Shared consent does not make every settlement process identical.

MCQ 28

Where should detailed tribunal doctrine be developed for this syllabus?

- A. Inside every Lok Adalat answer.
- B. As a form of Gram Nyayalaya.
- C. As a Family Court subsection.
- D. In Topic 46, with only a boundary distinction here.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** That would blur statutory institutions. [MCQ 28, option A: Inside every Lok Adalat answer.]
- **B - Incorrect:** A tribunal is not a rural first-instance court by definition. [MCQ 28, option B: As a form of Gram Nyayalaya.]
- **C - Incorrect:** Family Courts are statutory courts. [MCQ 28, option C: As a Family Court subsection.]
- **D - Correct:** This preserves syllabus ownership. [MCQ 28, option D: In Topic 46, with only a boundary distinction here.]

Examiner trap 28: Cross-reference tribunals; do not duplicate or collapse their constitutional doctrine.

MCQ 29

Which answer best applies *Anita Kushwaha*?

- A. Assess whether justice mechanisms are effective, reasonably accessible, timely and affordable.
- B. Treat settlement totals as the only success measure.
- C. Assume any online platform guarantees access.
- D. Conclude that physical distance is constitutionally irrelevant.

Answer: A.

Option-specific explanations:

- **A - Correct:** These are the access facets identified by the Court. [MCQ 29, option A: Assess whether justice mechanisms are effective, reasonably accessible, timely and affordable.]
- **B - Incorrect:** Disposal alone says nothing about fairness or durability. [MCQ 29, option B: Treat settlement totals as the only success measure.]
- **C - Incorrect:** Digital exclusion may obstruct access. [MCQ 29, option C: Assume any online platform guarantees access.]
- **D - Incorrect:** Reasonable accessibility includes distance. [MCQ 29, option D: Conclude that physical distance is constitutionally irrelevant.]

Examiner trap 29: Access is multidimensional; one favourable metric cannot substitute for the full test.

MCQ 30

Which statement best evaluates digital Lok Adalat or mediation formats?

- A. They automatically cure unequal bargaining power.
- B. They may reduce travel but require privacy, language, disability and offline safeguards.
- C. They convert settlement into compulsory adjudication.
- D. They remove the need for legal advice.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Technology can reproduce rather than cure power asymmetry. [MCQ 30, option A: They automatically cure unequal bargaining power.]
- **B - Correct:** This gives both benefit and qualification. [MCQ 30, option B: They may reduce travel but require privacy, language, disability and offline safeguards.]
- **C - Incorrect:** Mode does not alter the legal nature of settlement. [MCQ 30, option C: They convert settlement into compulsory adjudication.]
- **D - Incorrect:** Advice may be more important where digital literacy is weak. [MCQ 30, option D: They remove the need for legal advice.]

Examiner trap 30: Digital convenience must not become a new eligibility barrier.

MCQ 31

Which metric best tests legal-aid quality?

- A. Only the number of camps held.
- B. Only the number of disposed cases.
- C. Timeliness, competent assistance, informed consent and durable outcomes.
- D. Only the size of the publicity budget.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Camp counts do not establish effective assistance. [MCQ 31, option A: Only the number of camps held.]
- **B - Incorrect:** Disposal may conceal pressure or repeat litigation. [MCQ 31, option B: Only the number of disposed cases.]
- **C - Correct:** These measures connect service to justice quality. [MCQ 31, option C: Timeliness, competent assistance, informed consent and durable outcomes.]
- **D - Incorrect:** Spending alone is not an outcome. [MCQ 31, option D: Only the size of the publicity budget.]

Examiner trap 31: Input and disposal statistics must be connected to representation quality and user outcomes.

MCQ 32

Which integrated conclusion is most accurate?

- A. Every access forum should replace ordinary courts.
- B. Finality is more important than consent.
- C. Local forums need no appellate or constitutional safeguards.
- D. Plural forums advance access only when jurisdiction, voluntariness, competence and review are preserved.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Courts remain essential for coercive relief and adjudication. [MCQ 32, option A: Every access forum should replace ordinary courts.]
- **B - Incorrect:** Consent is foundational to ordinary Lok Adalat legitimacy. [MCQ 32, option B: Finality is more important than consent.]
- **C - Incorrect:** Statutory and constitutional legality remain necessary. [MCQ 32, option C: Local forums need no appellate or constitutional safeguards.]
- **D - Correct:** This is the balanced constitutional conclusion. [MCQ 32, option D: Plural forums advance access only when jurisdiction, voluntariness, competence and review are preserved.]

Examiner trap 32: A high-scoring conclusion joins accessibility to fairness rather than treating them as rivals.

PYQS AND ANSWER PRACTICE

Verified PYQ 1 - UPSC Prelims 2020, GS Paper I, Question 9

Question: In India, Legal Services Authorities provide free legal services to which of the following type of citizens?

1. Person with an annual income of less than Rs. 1,00,000
2. Transgender with an annual income of less than Rs. 2,00,000
3. Member of Other Backward Classes (OBC) with an annual income of less than Rs. 3,00,000
4. All Senior Citizens

A. 1 and 2 only B. 3 and 4 only C. 2 and 3 only D. 1 and 4 only

Answer withheld pending official UPSC key.

Demand route: Apply the eligibility framework and the dated rules reflected in the paper; do not substitute today's income limits or infer a key from general Section 12 categories.

Verified PYQ 2 - UPSC Mains 2023, GS Paper II, Question 2

Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India. (10 marks, 150 words)

Answer withheld pending official UPSC key.

Demand route: Section 12 categories -> Section 13 prima facie gate -> NALSA Section 4 functions -> State/district delivery -> qualified assessment.

Verified PYQ 3 - UPSC Mains 2024, GS Paper II, Question 2

Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases? (10 marks, 150 words)

Answer withheld pending official UPSC key.

Demand route: statutory source -> consensual versus adjudicatory power -> civil/compoundable criminal boundary -> award and challenge. Keep detailed tribunal doctrine with Topic 46.

SIX ORIGINAL MAINS MODELS

Original Mains 1 - 10 marks, 150 words

Question: Explain how Articles 39A and 21 together support access to justice.

Article 39A directs the State to secure equal-opportunity justice and free legal aid so economic or other disability does not deny access. Article 21 makes the promise concrete where liberty and fair procedure are involved. In *Hussainara Khatoon*, the Supreme Court treated speedy trial and necessary legal assistance for an indigent accused as elements of reasonable, fair and just procedure. *Khatri (II)* required assistance from first production and remand and imposed a duty on the judge to inform the accused. *Suk Das* set aside a conviction following failure to inform and provide aid. *Anita Kushwaha* connected access with an effective, reasonably accessible, timely and affordable adjudicatory mechanism. Thus Article 39A supplies the directive foundation and Article 21 supplies enforceable fair-procedure protection. However, the precise entitlement and remedy still depend on the proceeding and the governing statute.

[ORIGINAL MAINS 1 MODEL ANSWER ALPHANUMERIC WORD COUNT: 136]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 2 - 10 marks, 150 words

Question: Distinguish an ordinary Lok Adalat from a National Lok Adalat.

An ordinary Lok Adalat is a statutory settlement forum organised under Sections 19-21 of the Legal Services Authorities Act. It may receive pending cases and eligible pre-litigation matters, excludes non-compoundable offences, and can make an award only when parties compromise. *State of Punjab v Jalour Singh* confirms that it cannot decide merits after settlement fails.

A National Lok Adalat is not a separate constitutional or appellate court. It is a coordinated nationwide exercise in which many ordinary Lok Adalat benches sit on a common date or theme under NALSA and State-level organisation. Each bench retains the same jurisdiction, consent requirement, award effect and failure route. National scale may improve awareness and disposal, but it cannot enlarge statutory power. Therefore the distinction is administrative scale, not juridical character.

[ORIGINAL MAINS 2 MODEL ANSWER ALPHANUMERIC WORD COUNT: 127]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 3 - 15 marks, 250 words

Question: Analyse the statutory architecture of free legal services under the Legal Services Authorities Act, 1987.

The 1987 Act converts Article 39A's equal-justice direction into a national-to-local delivery architecture. Section 2(1)(c) defines legal service broadly to include assistance in a case or proceeding and legal advice.

NALSA under Sections 3-4 lays down policy, frames economical schemes, allocates funds, promotes legal literacy and research, supports social-justice litigation and monitors programmes. The Supreme Court Legal Services Committee administers aid for Supreme Court matters. At State level, the SLSA implements national policy, provides services and organises Lok Adalats; the High Court Committee handles matters before that court. DLSAs implement district programmes and coordinate Taluk Committees, which provide the local access point.

Entitlement is separately structured. Section 12 creates alternative gateways for SC/ST members, trafficking or begar victims, women and children, persons with disability, specified disaster or violence victims, industrial workmen, persons in custody and persons below prescribed income limits. Section 13 requires a prima facie case to prosecute or defend.

This division combines uniform policy with decentralised delivery. Yet institutional presence does not prove meaningful access. Counsel quality, early information, language, distance and timely assistance must be assessed, consistently with *Khatri (II)* and *Anita Kushwaha*.

[ORIGINAL MAINS 3 MODEL ANSWER ALPHANUMERIC WORD COUNT: 189]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 4 - 15 marks, 250 words

Question: Distinguish ordinary Lok Adalats and Permanent Lok Adalats with reference to jurisdiction, process and legal effect.

Ordinary and Permanent Lok Adalats share a statute but not the same jurisdiction or decisional power. Under Sections 19-21, an ordinary Lok Adalat may receive a pending case or an eligible pre-litigation matter within the relevant court's jurisdiction, except a non-compoundable offence. It facilitates compromise. If settlement succeeds, the award is deemed a civil-court decree, final and binding, with no statutory appeal and court-fee refund in a referred case. If settlement fails, the case returns to court or pre-litigation parties pursue the ordinary remedy. *Jalour Singh* forbids merits adjudication.

Chapter VI-A creates a standing PLA for defined public utility services. A party must apply before bringing the dispute to court, within statutory subject and notification-sensitive pecuniary limits. Sections 22C-22D require conciliation first. If agreement fails, the PLA may decide an eligible dispute on merits only if it does not relate to an offence. *Canara Bank* confirms that the conciliation sequence cannot be skipped.

Section 22E gives the PLA award final, binding and executable deemed-decree status. Both regimes retain narrow constitutional review for foundational illegality. Thus the decisive distinction is consent-only ordinary settlement versus bounded conciliation-cum-adjudication in public-utility pre-litigation disputes.

[ORIGINAL MAINS 4 MODEL ANSWER ALPHANUMERIC WORD COUNT: 189]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 5 - 20 marks, 250 words

Question: Evaluate Family Courts and Gram Nyayalayas as specialised access-to-justice institutions.

Family Courts and Gram Nyayalayas pursue Article 39A's access objective through different statutory designs. The Family Courts Act, 1984 creates specialised urban and other notified courts after High Court consultation. Section 7 concentrates matrimonial, inter-spousal property, legitimacy, maintenance, guardianship, custody and access disputes. Section 9 prioritises settlement; Sections 10-17 adapt procedure, privacy, evidence and legal assistance while retaining a reasoned judicial decision. Section 19 provides a High Court appeal or revision structure with express exclusions.

The Gram Nyayalayas Act, 2008 enables a State, after High Court consultation, to establish rural first-instance courts. Mobile sittings under Section 9 reduce distance. Civil and criminal jurisdiction follows schedules and valid notifications; civil disputes receive a conciliation effort, but unresolved matters are adjudicated. Sections 33-34 send permitted criminal and civil appeals to the Court of Session and District Court respectively, subject to statutory limits.

Both institutions combine specialisation or proximity with judicial power, unlike a compromise-only ordinary Lok Adalat. Their promise is lower cost, less distance and relationship-sensitive procedure. Their limitation is implementation: establishment, judges, staff, infrastructure, awareness and legal-aid quality vary. They should therefore be judged by accessible and fair outcomes, not labels or disposal totals alone.

[ORIGINAL MAINS 5 MODEL ANSWER ALPHANUMERIC WORD COUNT: 195]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 6 - 20 marks, 250 words

Question: Assess whether India's plural alternative and specialised justice forums improve access without weakening procedural fairness.

India's plural design recognises that one forum cannot fit every dispute. Article 39A directs equal-opportunity justice, while *Anita Kushwaha* requires an effective, reasonably accessible, timely and affordable mechanism. The 1987 Act provides legal-aid authorities and ordinary Lok Adalats for consensual settlement. Chapter VI-A adds a PLA for public-utility pre-litigation disputes, with conciliation followed by bounded merits adjudication. Family Courts combine relationship-sensitive settlement with judgment; Gram Nyayalayas combine local and mobile access with scheduled civil and criminal jurisdiction.

This differentiation can reduce cost, travel, delay and adversarial harm. National Lok Adalat drives can coordinate reach, while Fast Track Courts add capacity and Special Courts focus a statutory subject. However, labels do not guarantee justice. *Jalour Singh* shows why an ordinary Lok Adalat cannot impose a compromise. *Canara Bank* shows why a PLA cannot skip conciliation. Digital formats may exclude persons lacking devices, language support, privacy or accessible interfaces. Family and local courts also need trained judges, staff and informed legal assistance.

Reform should measure counsel quality, voluntariness, time and cost saved, compliance, geographic reach and the availability of reasons and review. Plural forums improve access only when exact jurisdiction, genuine consent, natural justice and constitutional supervision remain intact.

[ORIGINAL MAINS 6 MODEL ANSWER ALPHANUMERIC WORD COUNT: 197]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.